

HOUSE No. 259

The Commonwealth of Massachusetts

PRESENTED BY:

David Henry Argosky LeBoeuf

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to educational support for children in foster care.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>David Henry Argosky LeBoeuf</i>	<i>17th Worcester</i>	<i>1/14/2025</i>
<i>Russell E. Holmes</i>	<i>6th Suffolk</i>	<i>2/25/2025</i>
<i>Vanna Howard</i>	<i>17th Middlesex</i>	<i>6/25/2025</i>
<i>John J. Marsi</i>	<i>6th Worcester</i>	<i>3/19/2025</i>
<i>Kelly W. Pease</i>	<i>4th Hampden</i>	<i>3/17/2025</i>

HOUSE No. 259

By Representative LeBoeuf of Worcester, a petition (accompanied by bill, House, No. 259) of David Henry Argosky LeBoeuf and Russell E. Holmes relative to educational support for children in foster care. Children, Families and Persons with Disabilities.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 195 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to educational support for children in foster care.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 18B of the General Laws is hereby amended by adding the following section:-

2 Section 26. (a) The department of children and families, in consultation with the
3 department of elementary and secondary education, the office of the child advocate, the Service
4 Employees International Union, Local 509, the Massachusetts Alliance for Families and the
5 Massachusetts Court Appointed Special Advocates, Inc., shall:

6 (i) complete a review of all departmental policies relative to the education of children
7 under the custody, care or responsibility of the department, including children placed under the
8 care of foster families;

9 (ii) develop streamlined guidance for all department area offices relative to the
10 responsibilities, policies, agreements and procedures in place regarding the education of children
11 under the custody, care or responsibility of the department;

12 (iii) develop and promulgate regulations relative to the responsibilities and duties of
13 foster parents, social workers, department area offices and school districts regarding the
14 education of children under the custody, care or responsibility of the department; provided, that
15 the department shall develop regulations that allow the department to monitor the education of
16 each child and allow the department to easily provide information regarding each child's
17 educational history with any person authorized by law to make educational decisions for the
18 foster child and the child's teacher or teachers, school and school district that the child is
19 enrolled in; and

20 (iv) develop a program for new foster parents to inform the foster parents about their
21 responsibilities and department services relative to the education of the child.

22 (b) The department shall annually, not later than February 1, file a report, which shall
23 include aggregate data relative to the education of children under the custody, care or
24 responsibility of the department, with the governor, the clerks of the house of representatives and
25 the senate, the joint committee on children, families and persons with disabilities and the joint
26 committee on education.